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Case Name: *Theo Van Buren v. Bill Holdings Inc., et al.*

Case No.: 25CV480145

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants Bill Holdings, Inc.⁶, Spencer Pratt, and Milind Nimesh (“Defendant”) move under California Code of Civil Procedure Sections 473(b) and 473.5, *inter alia*, to set aside the Entries of Default entered on February 24, 2026 against Bill Holdings, Inc. and Spencer Pratt, and pending on March 2, 2026 against Milind Nimesh. Notice of Motion (the “Motion”) at 2:22-27 (filed: March 4, 2026).

The Motion came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

On February 24, 2026, the only Entry of Default that was ever entered by the Clerk of the Court in this case against any Defendant was a “Basic Only” (no dollar amount) Entry of Default made on February 24, 2026 against *only* Defendants Bill Holdings, Inc. and Spencer Pratt. That “Basic Only” February 24, 2026 contains no dollar amounts at all and contains no Judgment to be entered against Defendants Bill Holdings, Inc. and Spencer Pratt. Regarding Defendant Milind Nimesh, that same document states that it was “NOT entered” against Milind Minesh because of various defects. (Request for Entry of Default) (see For Court Use Only section at bottom of p. 1 explaining “Default entered” and “NOT entered” here) (filed: Feb. 24, 2026).

While Plaintiff subsequently did submit multiple Requests for Default for Court Judgment (with dollar amounts listed) against Defendants Bill Holdings, Inc. and Spencer Pratt on March 20, 2026 and April 16, 2026, those Defaults were NOT entered by the Clerk because of various defects. They were all rejected.

Regarding Defendant Milind Minesh, no Default was ever entered against Defendant Milind Minesh in this case. And there are no pending Requests for Entry of Default against Defendant Milind Minesh in this case either.

All that said, Defendants’ Motion to set aside the Entries of Default entered on February 24, 2026 against Defendants Bill Holdings, Inc. and Spencer Pratt, and (construed by Defendants as) pending on March 2, 2026, against Defendant Milind

⁶ While this Defendant refers to itself in its moving papers as Bill.com, for clarity of the record the Court refers to this Defendant in this Order by the name by which it was sued in this case: Bill Holdings, Inc.

Nimesh is **GRANTED** in all respects.⁷

Under Code of Civil Procedure Section 473(b), this Court has authority to set aside any entry of default taken against a party through his or her “mistake, inadvertence, surprise, or excusable neglect.” C.C.P. § 473(b). Here, as well demonstrated through the Declaration of attorney Ryan J. Williams in Support of this Motion (“Williams Decl.”) at ¶¶ 3-5, the February 24, 2026 Entries of Default were the result of a simple mistake by counsel of paying only one filing fee instead of three for each Defendant. In light of that fact, as well as all the facts and arguments presented in the moving, opposition, and reply papers, and in the broad exercise of its discretion, the Court **GRANTS** the Motion in its entirety and **SETS ASIDE** the February 24, 2026 Entries of Default for all Defendants.⁸

Moreover, the Court **DISMISSES** without prejudice this entire case against all Defendants. Why? Because just a few days after Plaintiff read the well-reasoned and well-supported Reply papers of Defendants filed on August 25, 2026, Plaintiff next on August 28, 2026 filed a Request For Dismissal of this entire action without prejudice. Request for Dismissal at ¶¶1-3 (filed: Aug. 28, 2026). Request granted, case dismissed.

Conclusion & Order

Accordingly, Defendants’ Motion is **GRANTED** in all respects. The Entries of Default entered on February 24, 2026 against Defendants and Spencer Pratt, and pending on March 2, 2026 against Milind Nimesh, are hereby **SET ASIDE**.

Moreover, at Plaintiff’s own Request For Dismissal filed on August 28, 2026, the Court **DISMISSES** without prejudice this entire action against all Defendants now.

SO ORDERED.

Date: September 2, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

⁷ Again, while no Entry of Fault was in fact ever entered against Defendant Milind Nimesh here, the Court hereby **SETS ASIDE** the February 24, 2026 Entry of Default (pending or otherwise) in its entirety to relieve Defendant Nimesh of any concern he may have on this point.

⁸ As the Court has **GRANTED** under Section 473(b) all the relief requested by all the Defendants in this Motion, the Court need not and does not reach Defendants’ additional arguments, e.g., under Section 473.5.

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